

DEFAULT DEADLINES — Calendar days unless noted

MILESTONE	DEFAULT TIMELINE	PARA.
EMD to Escrow ★ BUSINESS DAYS — not calendar	3 business days after acceptance	3D(1)
Loan Contingency	17 days after acceptance	L(1)/8A
Appraisal Contingency	17 days after acceptance	L(2)/8B
Inspection / Investigation Contingency	17 days after acceptance	L(3)/8C
Insurance Contingency	17 days after acceptance	L(4)/8D
Review of Seller Documents	17 days, or 5 days after delivery — whichever is later	L(5)
Title / Preliminary Report Review	17 days, or 5 days after delivery — whichever is later	L(6)
Seller Deliver All Disclosures & Docs	7 days after acceptance	N(1)
Sign and Return Escrow Instructions	5 days after delivery from escrow	N(2)
HOA Documents Ordered by Seller	3 days after acceptance	N(3)
Smoke / CO Detector / Water Heater Bracing	7 days after acceptance	N(4)
Final Walkthrough (Verification of Condition)	5 days BEFORE Close of Escrow	J/16
Offer Expiration	3 calendar days at 5:00 PM after buyer signatures	3C/32A
Standard Close of Escrow	30 days after acceptance — negotiable	3B
Contingency Removal	Written only — C.A.R. Form CR-B — verbal has no legal effect	Para. 14

KEY DOLLAR RULES

RULE	DETAILS
Liquidated damages cap	3% of purchase price — 1-4 unit owner-occupied only — Para. 29 must be initialed by both parties
Typical EMD range	1%-3% of purchase price — paid to escrow, never to the seller
Home warranty (seller max)	\$625 — Para. Q(18)
Civil penalty — wrongful cancellation refusal	Up to \$1,000 — Civil Code Section 1057.3
Prorations calculated on	30-day month — Para. 17

POSSESSION RULES

SITUATION	RULE / FORM REQUIRED
Default possession time	6 PM on COE date upon notice of recordation — Para. 3M
Seller leaseback 29 days or fewer	C.A.R. Form SIP — Seller In Possession — Para. 3M(2)
Seller leaseback 30 days or more	C.A.R. Form RLAS — creates landlord-tenant relationship — Para. 3M(2)
Tenant-occupied property	C.A.R. Form TOPA — Tenant Occupied Property Addendum — Para. 4A

DISPUTE RESOLUTION

STEP	DETAILS
Step 1 — Mediation (required before legal action)	Parties must attempt mediation first — consumermediation.org — Para. 30
Step 2 — Arbitration (only if both initial Para. 31E)	Initiating Para. 31E waives the right to a jury trial — binding arbitration
Notice to Buyer to Perform (NBP)	Minimum 2 days — required before seller can cancel for buyer breach
Notice to Seller to Perform (NSP)	Minimum 2 days — required before buyer can cancel for seller breach
Demand to Close Escrow (DCE)	Minimum 3 days before cancellation

THE BIG 5 CONTINGENCIES — What They Protect and How to Remove

CONTINGENCY	PARA.	WHAT IT PROTECTS THE BUYER FROM	DEFAULT	HOW TO REMOVE
Loan (Financing)	L(1) 8A	Losing deposit if loan is denied or falls through after acceptance	17 days	C.A.R. Form CR-B — loan box — in writing
Appraisal	L(2) 8B	Being stuck buying if home appraises below purchase price. Does NOT eliminate FHA/VA rights	17 days	C.A.R. Form CR-B — appraisal box
Inspection	L(3) 8C	Unforeseen property conditions during inspection period — all buyer investigations	17 days	C.A.R. Form CR-B — after ALL reports reviewed
Insurance	L(4) 8D	Unable to get homeowners insurance at reasonable cost — critical in CA wildfire zones	17 days	C.A.R. Form CR-B — confirm coverage first
Title Review	L(6) 8F	Defects, liens, easements found in the Preliminary Title Report	17 days or 5 days after prelim	C.A.R. Form CR-B — review full prelim first

COST ALLOCATION DEFAULTS — Para. Q (Who Pays What)

ITEM	WHO PAYS	PARA.
Natural Hazard Disclosure (NHD) Report	Seller	Q(1)
Optional Wildfire Report	Negotiated	Q(2)
Escrow Fee	Each party pays own	Q(7)
Owner's Title Insurance Policy	Seller	Q(8)
Buyer's Lender Title Insurance Policy	Buyer	Q(9)
County Transfer Tax	Seller	Q(10)
City Transfer Tax	Seller	Q(11)
HOA Fee for Preparing Disclosures	Seller	Q(12)
HOA Certification Fee	Buyer	Q(13)
HOA Transfer Fees	Seller (move-out) / Buyer (move-in)	Q(14)
Home Warranty — if seller pays	Seller — max \$625	Q(18)
Smoke / CO Detector Compliance	Negotiated	Q(4)
Government Point of Sale Inspections	Negotiated	Q(5)

KEY C.A.R. FORMS

FORM	NAME AND PURPOSE
CR-B	Contingency Removal — Buyer — ONLY way to remove contingencies — must be in writing
NBP / NSP	Notice to Buyer/Seller to Perform — minimum 2 days each
DCE	Demand to Close Escrow — minimum 3 days before cancellation
CC / RR	Cancellation of Contract / Request for Repair
SIP / RLAS	Seller In Possession (29 days or fewer) / Residential Lease After Sale (30+ days)
TOPA	Tenant Occupied Property Addendum
AD	Agency Disclosure — give to YOUR buyer before or when writing the offer
TDS / SPQ	Transfer Disclosure Statement / Seller Property Questionnaire — seller delivers both
AVID	Agent Visual Inspection Disclosure — required on every transaction
FVAC	FHA/VA Amended Clause — required for all FHA and VA transactions
WFA	Wire Fraud Advisory — give to buyer every transaction

ALWAYS REMEMBER

RULE	WHAT IT MEANS
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EMD goes to escrow — never the seller	Paid directly to escrow holder, never to seller or listing agent
Remove contingencies in writing only	C.A.R. Form CR-B — verbal removal has absolutely no legal effect
Days = calendar days	Every RPA deadline is calendar days — EMD is the ONLY exception (3 business days)
Buyer agent is NOT a party to the RPA	Brokers facilitate — the parties are buyer and seller — Para. 1D
Present all offers promptly	CA DRE requirement — withholding or delaying is a fiduciary violation
Dual agency requires written consent	Both buyer AND seller must consent in writing before or at signing
AVID required on every transaction	Document your visual inspection in writing — every time
Acceptance = signed AND delivered	Not accepted until signed by seller AND delivered to buyer/agent
Verbal agreements mean nothing	Every change must be in writing signed by both parties — Para. 28
Liquidated damages require initials	3% cap only applies if Para. 29 is initialed — not automatic
TDS cancellation right	3 days after personal delivery — 5 days after mail or email
Removing contingencies at offer time	Stated as "against Agent advice" in the RPA — Para. 8I